

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DFCS

Date: 5/19/2026

Bill Number: SB9

Short Title (as it appears on BASIS): Surrender of Infants; Inf. Safety Device
What action do you recommend the Governor take?

Select one.

☒ **SIGN** ☐ **VETO** ☐ **LWOS**

Action Justification – Why do you recommend the above action?

Please be specific.

This legislation is sponsored by Sen. Myers who is a supporter of the Governor. This legislation is good policy for the State of Alaska. Allowing infant safety devices to be used in safe surrender will prevent unnecessary loss of life for infants who are left to the elements instead of surrendered to a person. The removal of the barrier crime for surrendering an infant eliminates any punishments associated with surrendering an infant if the mother is unable to care for that infant. The point of the Safe Haven Act is to remove prosecution for abandoning an infant, but removal of the civil history punishment had been overlooked.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

SB 9 amends Children in Need of Aid (CINA) statute 47.10.013(c) (Abandonment – Safe Surrender) by adding a method which an infant may be surrendered. The amended adds, outside of a physical person, an infant safety device as a method for surrendering an infant. The amended

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includes requirements of an infant safety device, defines the department’s authority to implement and train those who employ the use of a box, removes the barrier crime for surrendering an infant in a civil history check for employment, and defines an authorized facility.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Sec. 1: Amends AS 47.05.325 to exempt surrendering an infant under AS 47.10.013 from the standards for a civil history check.

Sec. 2: Amends AS 47.05.330 to remove the civil history barrier crime that is associated with surrendering an infant under the Safe Haven Act.

Sec. 3: Amends AS 47.10.013(c) to include an infant safety device as a method of surrendering an infant under the Safe Haven Act. This section also specifies that the infant safety device must be physically affixed to an exterior wall of a hospital, emergency department, freestanding birth center, tribal health facility, private practice physician, rural health clinic, municipal police department, state trooper post, or fire department but does not mandate that these entities have an infant safety device.

Sec. 4: Provides clarifying amendments in AS 47.10.013(d) to conform with changes made to subsection (c).

Sec. 5: Amends AS 47.10.013(e) denoting the facilities who obtain and utilize infant safety devices as “authorized” facilities.

Sec. 6: Amends AS 47.10.013 to adding new subsections requiring authorized facilities to notify the department when an infant has been surrendered using the infant safety device and outlines physical and maintenance requirements for the infant safety device. Furthermore, there is a new subsection that authorizes the department to provide training on how to implement the requirements of the legislation, requires notification to a Tribe if the child is an Indian child, and defines an “authorized facility.”

Sec. 7: Provides for an effective date of July 1, 2026.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

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Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

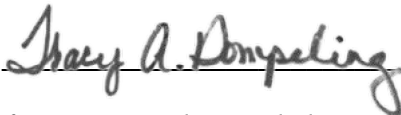
Support:

Douglas Schrage, Fire Chief, Anchorage Fire Department (907) 267-4945
Julie Lynette Condell, Lead 911 Dispatcher, Anchorage Fire Department (907) 360-1156
France Robinson, 911 Telecommunicator, Anchorage Fire Department (907) 360-1156
Trevor Storrs, President, Alaska Children's Trust (907) 248-7676
Jared Kosin, President, Alaska Hospital and Healthcare Association (907) 406-0555
David Pruhs, Mayor City of Fairbanks, (907) 459-6793
Mike McKay, Senator, State of Maryland (410) 841-3565
Sharon Hildebrand, Chief/Chairman, Tanana Chiefs Conference (907) 452-8251

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

Bill signing ceremony would be great at either at the Anchorage Fire Department or Fairbanks Memorial Hospital. DFCS would support inviting the supporters of the legislation.

Commissioner's Signature:  **Date:** 5/19/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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